

Tentative Rulings for August 6, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400187	ALLEN VS MCANDREWS	MOTION TO COMPEL: ANSWER/RESPONSE TO FORM INTERROGATORIES FORM INTERROGATORIES 305.1, 305.11, 7.1 AND 7.3, FURTHER ANSWERS/RESPONSES TO INTERROGATORIES FORM INTERROGATORIES 305.1, 305.11, 7.1, 7.3 BY JOHN EDWARD MCANDREWS

Tentative Ruling:

Moving party: Defendant John Edward McAndrews
Represented by: Knez Law Group, LLP

Responding party: Plaintiffs Philip Allen and Wayne Cox
Represented by: Guralnick, Gilliland & Garcia

Plaintiffs Phillip Allen and Wayne Cox, individually and as trustees of the Allen-Cox Family Trust allege that they entered into a building construction contract with Defendant John McAndrews dba McAndrews Mountain Construction for a custom home. John McAndrews hired Defendant Caleb McAndrews dba McAndrews Construction to perform brush clearing and concrete work. Plaintiffs discovered water intrusion through the walls and floors. Plaintiffs then hired Caleb to perform mitigation work, without a contract, which failed to stop or mitigate the water intrusion. Defendants Justin Jones dba Idyllwild Backhoe, Rainbow Gutter Co. and Julio Sevillano also performed work on the property.

The operative pleading is the Second Amended Complaint (SAC) filed 2/4/25 for: (1) negligence; (2) nuisance; (3) negligence per se; (4) breach of contract; (5) breach of express warranty; (6) breach of implied warranty; and (7) payment on contractor's license bond (against Western Surety Company).

On 6/18/26, the McAndrews filed their operative First Amended Cross-Complaint (FAXC) against Plaintiffs and David J. Lilieholm for: (1) equitable indemnity; (2) third party negligence; (3) breach of contract; (4) breach of contract; (5) breach of covenant of good faith and fair dealing; and (6) breach of covenant of good faith and fair dealing.

Trial is set for November 20, 2026.

Defendant John Edward McAndrews ("Defendant") now moves to compel Plaintiff Phillip Allen ("Allen") to provide further responses to Form Interrogatories, Nos. 305.1, 305.11 and supplemental Interrogatories; and Plaintiff Wayne Cox ("Cox") to provide further responses to Form Interrogatories 7.1 and 7.3. John also requests the court impose monetary sanctions against Plaintiffs and Plaintiff's counsel, Ryan Garcia, in the amount of \$3,960 or evidentiary sanctions.

In opposition, Plaintiffs oppose and argue the motion lacks merit and should be denied. Allen argues John never met and conferred as to Nos. 305.1 and 305.11. Cox argues his responses to Nos. 7.1 and 7.3 fully comply with the Civil Discovery Act and he answered each subsection based upon all information reasonably available after a reasonable inquiry. Defendant never notes what information he believes is missing. The responses are complete and not evasive. Plaintiffs argue the request for evidentiary sanctions is completely unsupported and monetary sanctions are not appropriate given the timely responses, voluntarily supplement of No. 7.3 after the motion was filed and good faith compliance with the Discovery Act.

In reply, Defendant argues the responses are not Code-compliant. He argues sanctions are appropriate because Defendant misused the discovery process.

Analysis

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P., § 2030.300(a).) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) Responses were served April 6, 2026 and the motion was timely filed May 7, 2026.

The parties are required to meet and confer. (C.C.P., §§ 2030.300(b), 2031.310(b), 2033.290(b).) A single letter followed by a response of refusal may be sufficient in certain circumstances to constitute a proper meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) However, the court will also consider the time available before the motion deadline, the extent to which the responding party was complicit in the lapse of time, and the prospects of success through meet and confer. (*Id.* at 432-433.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and “[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (*Id.* at 1293 [internal quotation marks omitted].)

Here, there was no effort by Defendant to meet and confer as to Allen's responses to Nos. 305.1 and 305.11. (See Knez Decl., Exh. K, p. 2.) Plaintiffs argued this in opposition, and Defendant failed to address the issue in reply. The motion may properly be denied as to Nos. 305.1 and 305.11 for failure to meet and confer.

As to Cox's responses to Form Interrogatories Nos. 7.1 and 7.3, on April 7, 2026, Defendant sent a meet and confer letter stating the responses were not sufficient. (See Knez Decl., Exh. K, p. 2.) On April 10, 2026, Cox provided further responses. (Garcia Dec. ¶¶ 4, 7). On April 24, 2026, Defendant sent Cox another meet and confer letter stating "We must have complete answers to each part," regarding Nos. 7.1 and 7.3. On April 27, 2026, Plaintiffs provided Defendant with further responses to Cox's General Form Interrogatories Nos. 7.1 and 7.3 and broke each response into subparts as requested by Defendants. On April 29, 2026, Defendant sent another letter stating the further response to No. 7.3 was "nothing more than a regurgitation of what you previously provided." (Knez Decl., Exh. L.) On May 11, 2026, after the motion was filed, Cox served a supplemental response to No. 7.3 by preparing a compilation and summary of repair costs. Defendant contends the supplemental response is defective. However, the parties have not met and conferred on the supplemental response.

Accordingly, the Court continues the matter and orders the parties to meet and confer via phone, videoconference or in person as to Nos. 7.1 and 7.3 only within 15 days. If there are any outstanding issues, the parties are to submit a joint separate statement 5 court days before the next hearing indicating what discovery is still at issue. No further briefing is allowed.

Continue for meet and confer as to Nos. 7.1 and 7.3 only. Hearing continued to 9/11/2026 at 8:30 a.m. in Dept. 6.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402863	CASTELLANOS VS BUENROSTRO	MOTION TO COMPEL BY RAUL BUENROSTRO, ETELBINA BUENROSTRO

Tentative Ruling:

Moving party: Defendants, Raul and Etelbina Buenrostro ("Defendants")
Responding party: Plaintiff, Salvador Castellanos ("Plaintiff")

Now before the Court is Defendants' motion to enforce settlement agreement entered by the parties after a trial. Plaintiff sued Defendants for partition of a farm property they jointly own, which is commonly known as 8855 Victoria Avenue, Riverside, California.

In November 2025, after a trial, the parties negotiated and entered into a settlement agreement, which was memorialized in a Stipulation for Entry of Judgment. On December 15, 2025, the Court entered judgment in accordance with the term of the stipulation, which was filed in this case on January 07, 2026.

In sum, the parties agreed to the following settlement terms:

- a) Defendants will pay Plaintiff the amount of \$285,000 (“Judgment Amount”) within 180 days of entry of judgment;
- b) Upon payment of the Judgment Amount, Plaintiff will deliver to Defendants a Grant Deed conveying all interest in the Subject Property to Defendant RAUL BUENROSTRO, a married man.
- c) Defendants will agree to assume all debts or liens related to the Subject Property, including any incurred during the 180-day period.
- d) During the 180-day period, Plaintiff agrees not to interfere with the Defendants’ farming operations on the Subject Property. (See Stipulation for Entry of Judgment and Judgment, ¶16, attached as Exhibit A to the Declaration of Thomas N. Jacobson.)

Defendants represent that, in order to satisfy their obligations under the settlement agreement, they sought to obtain necessary funding for the buy-out amount of \$285,000 with a willing lender. They explain that, in order to close escrow on the financing of the buy-out, and to obtain title insurance, the parties were required to fill out and sign a document referred to as a “statement of interest” to be submitted to escrow. Defendants assert that, despite reasonable request to Plaintiff to complete a statement of interest, Plaintiff has failed to, or refused to, cooperate, which necessitated Defendants to file the instant motion on May 19, 2026.

Plaintiff opposes the motion, contending that Defendants, by way of this motion, are seeking to insert terms and conditions which were never applicable to the judgment. Plaintiff contends that Plaintiff did not agree that he will sign a sales agreement or any other escrow documents to help Defendants in obtaining a loan.

Filing of the Opposition was untimely, which must be filed nine court days before hearing. (Code Civ. Proc., §1005.) “A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.” (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 765.) The court considers the late opposition because the moving parties have filed a substantive reply, which constitutes a waiver of the purported procedural defect. (See *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 58-59.)

I. Legal Standard.

Code of Civil Procedure section 664.6 provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally

before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., §664.6.) The court’s decision to adopt a settlement as a judgment under section 664.6 is not mandatory as the statute states that a court “may enter judgment pursuant to the terms of the settlement....” (*In re Jason E.* (1997) 53 Cal.App.4th 1540, 1546.) Although a motion for enforcement of a settlement filed under section 664.6 is not an exclusive means to enforce an agreement, section 664.6 provides for an expeditious procedure intended to “benefit not only parties but also the justice system, relieving it of the burden of more time consuming and expensive processes. [Citation.]” (*In re Marriage of Woolsey* (2013) 220 Cal.App.4th 881, 898.)

“A section 664.6 motion is appropriate... even when issues relating to the binding nature or terms of the settlement are in dispute, because, in ruling upon the motion, the trial court is empowered to resolve these disputed issues and ultimately determine whether the parties reached a binding mutual accord as to the material terms.” (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.) “Section 664.6’s express authorization for trial court to determine whether a settlement has occurred is an implicit authorization for the trial court to interpret the terms and conditions to settlement.” (*Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 566.)

“A trial court, when ruling on a section 664.6 motion, acts as a trier of fact.” (*Skulnick v. Roberts Express, Inc.* (1992) 2 Cal.App.4th 884, 889.) The court “acting upon a motion under section 664.6 may determine the motion upon declarations alone” or, in the trial judge’s sound discretion, may receive oral testimony in making a determination on the motion. (*Ibid.*; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565.)

II. The Motion will be granted.

The parties have entered into an enforceable settlement agreement, which is not being contested by Plaintiff. Evidence presented by Defendants by way of declarations, and authenticated documents demonstrate that, despite multiple requests by Defendants, Plaintiff has failed to cooperate with Defendants in signing documents necessary to obtain financing to buy out Plaintiff’s interest in the property. Plaintiff does not dispute this fact and confirms that, in June of 2026, Defendants presented to Plaintiff a letter indicating that Defendants have been preapproved for a loan. Defendants have demonstrated that they have taken steps to satisfy their obligations to make payment to Plaintiff, but Defendants are unable to secure the funds as escrow cannot be closed without Plaintiff’s cooperation. On that ground, they request the Court to issue an order compelling Plaintiff to complete the Statement of Interest and cooperate in facilitating the settlement agreement between the parties.

Plaintiff correctly argues that any promise to cooperate in helping Defendants to obtain financing to meet their settlement obligations was never incorporated into the settlement agreement, and hence not part of the terms of the parties’ agreement. Defendants argue that, despite the fact the Plaintiff’s obligation to ensure Defendants secure the financing necessary to pay off Plaintiff was not made a part of the

agreement, such obligation is nevertheless a duty under the implied covenant of good faith and fair dealing to ensure Defendants are not deprived of the benefits of the agreement.

Defendants' argument is unpersuasive. As Plaintiff points out, in a summary proceeding to enforce settlement agreement under section 664.6, although the court may " " "receive evidence, determine disputed facts, and enter the terms of as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon." ' [Citations.]" (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 790.) "As such, '[t]he power of the trial court under [section 664.6] ... is extremely limited. [¶] ... The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.' [Citation.]" (*Ibid.*) "[A] final judgment 'leaves nothing in the nature of judicial action to be done other than questions of enforcement or compliance.' [Citations.]" (*Lofton v. Wells Fargo Home Mortgage* (2014) 230 Cal.App.4th 1050, 1061.) This would mean that the Court cannot modify the terms of the settlement agreement by incorporating any additional obligations under an implied covenant of good faith and fair dealing. Nevertheless, Defendants are not without recourse.

"[T]he court's retention of general jurisdiction under section 664.6 includes the court's equitable authority" under Code of Civil Procedure section 187 and 128. (*Lofton v. Wells Fargo Home Mortgage, supra*, 230 Cal.App.4th at 1061 [held court did not abuse discretion in issuing post-judgment TRO requiring law firm to deposit settlement funds in escrow pending resolution of firm's attorney fees claim].) "This equitable authority 'is not restricted to setting aside the former judgment; to the contrary, the court has power to provide any appropriate equitable remedy....' [Citation.]" (*Ibid.*) Accordingly, the scope of the Court's jurisdiction includes the power "to 'provide for the orderly conduct of proceedings before it ... [and] ¶ ... [¶] ... [t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.' " (*Id.* at 1062, citing Code Civ. Proc., § 128(a)(3), (5).) "When jurisdiction is ... by any ... statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given..." (Code Civ. Proc., § 187.)

This would mean whenever the Court retains jurisdiction under 664.6, the Court has broad equitable powers to ensure compliance with the settlement terms, even if those powers are not explicitly detailed in the agreement itself, including issuing an order to ensure that the parties comply with the reasonable requests to give effect to the agreement's purpose and intent. Here, Defendants' request aligns with the underlying goal of the settlement which is to allow them to buy out Plaintiff's interest as intended by the settlement terms. As such, the Court grants the motion to compel Plaintiff to complete and execute escrow documents that are necessary for closing the loan to allow Defendants to fulfill their obligations under the agreement.

Defendants' request for sanctions is denied as they provide no valid basis for imposing sanctions against Plaintiff.

Summary

Grant the motion. Deny request for sanctions.

Court set this matter for an OSC re sanctions/dismissal as to Plaintiff as well as compliance with settlement terms on 11/5/2026 at 8:30 Department 6.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504018	ROWLEY. VS BAILEY	MOTION TO STRIKE COMPLAINT ON 2ND AMENDED COMPLAINT FOR AUTO (OVER \$35,000) OF DENNIS ROWLEY BY SIERRA DAWN ESTATES HOMEOWNERS ASSOCIATION.

Tentative Ruling:

This motion is unopposed. Accordingly, the motion is granted in all respects. The proposed order submitted has been signed by the Court and filed. Moving party to give notice of ruling.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601496	FRIZZELL VS CITY OF RIVERSIDE	DEMURRER ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF CRAIG STEVEN FRIZZELL BY CITY OF RIVERSIDE

Tentative Ruling:

This Demurrer is unopposed. Accordingly, the Demurrer is sustained without leave to amend in all respects. The matter is Dismissed with prejudice. Proposed order submitted has been signed and filed. Moving party to give notice of ruling.